

contemplated Act, they were not allowed the costs and expenses incurred in the proceeding (*a*); but if the application to Parliament was attended with success, the trustees were then allowed their costs, though the sanction of the Lord Chancellor had not been previously obtained; for the Court could not with propriety pronounce those measures to be imprudent which the legislature itself had enacted as prudent (*b*).

24. Letter may be broken and yet the spirit preserved.—The management of the trust may contravene the *letter* of the founder's will, and yet, on a favourable construction, be conformable to the intention.

Free grammar school.—It was the opinion of Lord Eldon (*c*) and Sir T. Plumer (*d*), that if the wish of the founder was to establish a *free grammar school*, the Chancellor, though he felt perfectly convinced that a free grammar school (that is, a school for teaching the learned languages) could be of little or no use, would yet be bound to apply the revenue as the donor had directed, and could not substitute a school for teaching English and writing and arithmetic. But it has since been held by Lord Lyndhurst (*e*), Sir John Leach (*f*), Lord Langdale (*g*), and Lord Cottenham (*h*), that the Court has jurisdiction to extend the application of the charity fund to purposes beyond the *literal* intention, and that *writing and arithmetic* may be well introduced into a scheme for the establishment or better regulation of a free grammar school.

Free school.—And this may of course be done in the case not of a *free grammar school*, but of a *free school* (*i*).

3 & 4 Vict. c. 77.—By 3 & 4 Vict. c. 77, the system of

(*a*) Attorney-General v. Earl of Mansfield, 2 Russ. 519, per Lord Eldon.

(*b*) *Ib. per eundem.*

(*c*) Attorney-General v. Whiteley, 11 Ves. 241; Attorney-General v. Earl of Mansfield, 2 Russ. 501.

(*d*) Attorney-General v. Dean of Christchurch, Jac. 474.

(*e*) Attorney-General v. Haberdashers' Company, 3 Russ. 530.

(*f*) Attorney-General v. Dixie, 2 M. & K. 432; Attorney-General v. Gascoigne, Id. 652.

(*g*) Attorney-General v. Caius College, 2 Keen, 150; Attorney-General v. Ladyman, C. P. Coop. Cases, 1737-38, 180.

(*h*) Attorney-General v. Stamford, 1 Ph. 745.

(*i*) Attorney-General v. Jackson, 2 Keen, 541.